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VIA DMM

Hon. Michelle L. Phillips
Secretary to the Commission
New York State Public Service Commission
Empire State Plaza
Agency Building 3
Albany, NY 12223-1350

Re: Case 18-E-0138 – Proceeding on Motion of the Commission Regarding Electric Vehicle Supply Equipment and Infrastructure

Dear Secretary Phillips:

The Vehicle Grid Integration Council hereby submits comments for filing on the Technical Standards Working Group Report, which addresses electric vehicle supply equipment and telematics metering accuracy for managed EV charging programs. In addition, VGIC's comments include responses to the broader set of questions posed by DPS Staff.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Steve Letendre", is written over a horizontal line.

**STATE OF NEW YORK
PUBLIC SERVICE COMMISSION**

**Proceeding on Motion of the Commission
Regarding Electric Vehicle Supply
Equipment and Infrastructure**

Case 18-E-0138

**COMMENTS OF THE VEHICLE GRID INTEGRATION COUNCIL (VGIC) ON THE
TECHNICAL STANDARDS WORKING GROUP REPORT ADDRESSING
EVSE AND TELEMATICS ACCURACY AND DPS STAFF QUESTIONS**

I. INTRODUCTION

The Vehicle-Grid Integration Council (VGIC) is a 501(c)(6) membership-based advocacy organization committed to advancing the role of electric vehicles (EVs) and vehicle-grid integration (VGI) through policy development, education, outreach, and research. VGIC supports the transition to decarbonized transportation and electric sectors by ensuring that the value from EV deployments, and from flexible EV charging and discharging, is recognized, compensated, and aligned with a more reliable, affordable, and efficient electric grid.

Transportation electrification is central to meeting New York’s Climate Leadership and Community Protection Act (CLCPA) requirements, and the state’s rising EV adoption underscores the urgency of ensuring that this transition strengthens, not strains, the electric grid. The Grid Flexibility Study, prepared for the Department of Public Service (DPS) and New York State Energy Research and Development Authority (NYSERDA) in January 2025, found that electric vehicles are expected to become the largest source of grid flexibility in both 2030 and 2040, providing more system value than any other behind-the-meter resource. This finding highlights the critical role that managed charging programs, and eventually bidirectional charging, will play in enabling EVs to reliably shift or shed load during the system’s highest-value hours. As millions of EVs connect to the grid over the next decade, managed and bidirectional charging programs will be essential to unlocking this flexibility, reducing peak demand, improving system affordability, and enhancing resiliency while supporting the state’s clean-energy mandates.

VGIC appreciates the opportunity to provide comments on the Technical Standards Working Group Report (TSWG Report), which addresses electric vehicle supply equipment (EVSE) and telematics accuracy testing methodology. In addition, VGIC responds below to the broader set of questions posed by DPS Staff, which extend beyond accuracy alone and include the Commission’s and joint utilities’ (JU’s) potential roles in standards development and design considerations for managed charging programs.

II. COMMENTS ON THE TSWG REPORT

VGIC appreciates the DPS Staff and Joint Utilities' important work in developing a standardized test method, demonstrated through a limited set of EVSE and telematics samples, for assessing the accuracy of EV charging data. The development of this test method is an important first step into advancing managed charging programs.

A. Summary of VGIC's Position

The TSWG Report recommends that New York should not adopt any accuracy or metering standards at this time, citing significant gaps in national standards and the risk of constraining program participation. Our key positions in response to this recommendation and related next steps are summarized below and expanded in the following section:

- VGIC supports Staff Option #5 (Status Quo) as the appropriate near-term approach. EVSE and telematics-based participation must remain eligible for managed charging programs until standards are mature. Keeping current managed charging program participation pathways open maintains the broad customer engagement necessary to continue scaling managed charging programs statewide.
- The EPRI exercise on EVSE and telemetry data accuracy provides useful exploratory insights but is far too limited in scope, sample size, and methodology to support broad conclusions about the accuracy of EVSE or telematics systems data for use in managed charging programs or submetering. Notably, the exercise was never intended to do so, instead it was launched to establish a *methodology* for testing devices, rather than conducting widespread testing to yield definitive conclusions about accuracy.
- New York should avoid adopting state-specific accuracy requirements for telematics and EVSE at this time, consistent with the TSWG's finding that existing standards are incomplete and that premature adoption "would unduly limit program participation."
- National standards alignment must form the foundation of New York's future EVSE and EV submetering roadmap. As DPS develops a roadmap, metering requirements should be matched to today's program needs, while any future EV-specific TOU rates will necessitate adoption of a revenue-grade national standard.
- While NIST Handbook 44 provides a well-established accuracy standard for EVSE submetering, requiring compliance now would significantly restrict participation because most residential chargers on the market are not yet certified to this standard. However, if New York requires revenue-grade metering for EV-specific TOU rates, the NIST 44 accuracy standard should serve as the appropriate, nationally recognized framework for EVSE metering accuracy, consistent with what's been adopted outside of New York.
- The Commission and utilities should not only monitor but actively lead and contribute to regional or national policy development (for Commission) and

standards development (for utilities) efforts to ensure that emerging frameworks reflect practical program needs, support broad participation, and enable a clear, scalable pathway for future implementation in New York.

- VGIC offers detailed responses to DPS Staff's six questions in each of the three categories: Standards Development, Data Opacity & Accuracy, and Programmatic Options.

B. Detailed Comments on the TSWG Report

The TSWG Report provides an important foundation for understanding how EVSE- and telematics-reported charging data can be evaluated and compared using a consistent methodological framework. While the results to date are based on limited samples and are not intended to represent a comprehensive market-wide assessment, the work nonetheless highlights several critical considerations for New York as it seeks to expand managed charging programs and tap into emerging bidirectional charging capabilities. VGIC's detailed comments below expand on these considerations and outline priority actions for DPS, emphasizing the need to maintain broad program participation today while establishing a forward-looking pathway toward standardized approaches to EV chargin metering.

1. Support for Staff Option #5 (Status Quo) and Continued Broad Participation

VGIC supports Staff's Option #5 (Status Quo) as the most appropriate near-term approach for utility-managed charging programs, while emphasizing that maintaining the status quo does not mean pausing progress. In fact, it does just the opposite, allowing New York to preserve broad participation in managed charging programs and yield the resulting critical learnings about customer engagement, utility operations and planning, and system impact, while continuing to advance the foundational work needed for future standards-aligned metering. In practice, this means maintaining broad enrollment pathways while DPS moves forward with:

- (a) Adopting an EV- and EVSE-based submetering roadmap aligned with emerging national standards (as detailed by VGIC below in Section 3;
- (b) Directing utility representation in standards development; and
- (c) Preparing for future submetering capabilities for bidirectional charging use cases.

Option #5 protects customer participation at a critical moment in the State's transportation electrification efforts. Any approach that reduces incentives for telematics users, requires immediate hardware changes, or imposes technology-specific penalties would disproportionately affect customers with limited ability to install new EVSE, such as renters, residents of multi-unit dwellings, rideshare drivers, and others dependent on public charging. These customers currently rely on telematics pathways to participate in managed charging programs. Restricting their access would undermine enrollment and reduce the system-wide benefits that managed charging programs are intended to deliver, including peak load reduction and improved grid utilization.

2. Ensure Design Flexibility as Standards Mature

VGIC agrees with DPS Staff that maintaining broad and accessible participation in managed charging programs is essential as standards evolve. The accuracy findings referenced in the TSWG Report stem from the EPRI study, which evaluated a limited sample of EVSE and telematics devices to demonstrate and validate a testing *methodology*, not to provide a comprehensive market-wide assessment. These preliminary results do not justify narrowing eligibility or penalizing customers who rely on telematics-based participation, nor do they justify definitive conclusions that EVSE and/or EV-based metering should not be used in New York. Notably, California customers use EVSE-based submetering to take advantage of compelling EV-specific rates, leveraging the accuracy standard established in NIST Handbook 44, which requires deviations less than 1% in a lab and 2% in the field. For New York to determine that EVSE-based measurement, in particular, is not appropriate for use would be inconsistent with what is being done elsewhere.

Moreover, at this stage of market development, managed charging programs must prioritize inclusivity and accessibility. Restricting participation based on interim accuracy concerns – especially those demonstrated by a very small sample of EV and EVSE-based measurement – would risk slowing transportation electrification and undermining customer engagement at a moment when participation habits and program familiarity are still forming.

The EPRI study offers helpful exploratory data, but its limited scope (i.e., three EVs, three telematics providers, four EVSEs, and the use of an upstream reference meter that inherently captures wiring losses), means it cannot support definitive conclusions about the suitability of EVSE or telematics for submetering or managed charging accuracy. The report itself acknowledges that **it did not develop performance standards and was not intended to certify equipment performance, underscoring that its findings should not be used to restrict participation pathways.**

When revenue-grade submetering becomes necessary for EV-specific rates, VGIC recommends that DPS adopt the NIST Handbook 44 accuracy requirements already used in California¹, which provide a clear, nationally recognized standard for EVSE submetering. This certification requirement should apply only to use cases that truly require revenue-grade accuracy, and should not be imposed on managed charging programs where it would unnecessarily limit participation.

For many drivers, telematics remains the most practical and affordable pathway into managed charging programs. This is especially true for customers reliant on public charging, renters, residents of multi-unit dwellings, rideshare drivers, and others who may not have the ability or financial means to install smart EVSE hardware. Several of the approaches outlined by DPS Staff as potential paths forward, such as incentive buffers, technology-specific penalties, or

¹ See California Public Utilities Commission, Plug-In Electric Vehicle (PEV) Submetering, available at <https://www.cpuc.ca.gov/industries-and-topics/electrical-energy/infrastructure/transportation-electrification/electricity-rates-and-cost-of-fueling/plug-in-electric-vehicle-submetering>.

differentiated incentive levels based on device type, would disproportionately affect these customers and introduce unnecessary inequities into program design. Additionally, program administration would be made more complex through these options, as they effectively require each utility to maintain two programs: one for EVSE-based participation and one for EV-based participation. While intended to address the accuracy concerns identified in the EPRI report, these measures risk signaling that customers may need to purchase new hardware to participate fully in managed charging programs, dampening participation, slowing the adoption curve that the State aims to accelerate, and imposing cost concerns on customers amid an affordability crisis.

The DPS should maintain a strong commitment to technology-neutral program enrollment pathways, until and unless EV-specific residential rates become available in New York. Keeping program rules flexible preserves participation while allowing New York to transition smoothly to standards-based approaches once there is a need to do so. Maintaining open participation pathways ensures that managed charging programs continue to be cost-effective, equitable, and aligned with long-term grid modernization and transportation electrification goals.

3. Roadmap for Aligning EVSE and Telematics with National Standards

The TSWG Report relies on testing by EPRI to conclude, based on a limited sample, that current EVSE and telematics systems are not yet suitable for revenue-grade metering. Importantly, the Report emphasizes that these findings should not translate into restrictive program rules or reduced eligibility today. VGIC strongly agrees. As noted above, at this stage of market development, maintaining broad and accessible participation is essential for shaping customer charging habits and supporting statewide transportation electrification goals.

The report recognizes that accuracy challenges extend beyond physical measurement to include telemetry, data handling, and calculation of differences across devices. Continued technical investigation, including real-world performance testing, auxiliary load considerations, and data-pathway evaluations, will help clarify what is required for alignment with national standards such as NIST HB 44 (Handbook 44), ANSI C12.20, ISO 15118-20, and any forthcoming SAE work.

The TSWG Report notes:

- **EVSE metering:** “Staff does not currently recommend the adoption of any particular standard. Though accuracy standards for EVSE do exist, few manufacturers have coalesced around any particular standard. Staff is supportive of standards generally and is

eager for the residential EVSE industry to coalesce around an accuracy standard, but believes that requiring one at this time would unduly limit program participation.”²

- **Telematics:** “...no standard for accuracy of EV telematics currently exists... a standard needs to be developed for EV telematics to better support the programs of today and enable programs of the future...Disallowing participation via this method would significantly impact program uptake during a crucial time for the formation of EV charging habits.”³

These statements make clear that adopting accuracy requirements would be premature and counterproductive. VGIC fully supports this overall conclusion, with the important caveat that *if* New York adopts EV-specific customer rates in which submetering would provide a lower-cost solution than installing an additional utility meter, then accuracy standards should be adopted.

Additionally, these statements underscore the importance of aligning New York’s trajectory with the direction of regional and national standardization efforts. There is value in bringing this expertise to the national standards development forums. There are not many groups as well positioned as DPS staff and NY utilities to collaborate with other state utility commissions (in the case of DPS staff) and industry standards development (in the case of NY utilities) on a unified, consensus approach.

The TSWG Report also identifies substantial gaps in the national landscape, describing “incomplete national standards for EVSE and telematics testing, certification, and compliance.”⁴ VGIC concurs that New York should not attempt to fill these gaps through bespoke, state-specific requirements that would misalign with national initiatives currently underway. Instead, DPS should focus on building a forward-looking roadmap that positions New York to adopt standards once they mature at the national level.

A robust roadmap would outline the technical, procedural, and data-quality expectations that EVSE and telematics systems will eventually need to meet while avoiding any immediate program constraints. By defining a clear sequence of research needs, pilot activities, validation steps, and stakeholder engagement processes, the roadmap would provide transparency for market participants without prematurely narrowing the technologies eligible for managed charging programs. When creating the roadmap, it is important to keep in mind the right tools for the job. If the end goal is EV-specific TOU rates a technical standard for revenue-grade metering at the device-level may be required. If not, then current EVSE and vehicle telematics capabilities can capably deliver program goals.

Furthermore, VGIC recommends the roadmap include the following scenarios:

² New York State Department of Public Service. Technical Standards Working Group Report on EVSE and Telematics Accuracy (September 2025), page 21.
<https://documents.dps.ny.gov/public/MatterManagement/MatterFilingItem.aspx?FilingSeq=369102&MatterSeq=56005>

³ Ibid, page 21

⁴ Ibid, page 13.

- *If New York adopts EV-specific TOU rates, then EVSE-based metering should be immediately eligible based on the accuracy standard detailed in NIST Handbook 44, which would align with what's been done outside of New York (e.g., in California)*
- *If New York adopts EV-specific TOU rates, and if SAE or another organization has developed a standard specific to EV-based metering, then EV-based metering should be eligible based on the relevant standard having been developed.*

III. RESPONSES TO DPS STAFF QUESTIONS

In addition to commenting on the TSWG Report, VGIC appreciates the opportunity to respond to the specific questions posed by DPS Staff regarding the development of accuracy standards, the roles of the Commission and utilities, data transparency, and design considerations for managed charging programs. These questions directly address how New York can improve data quality and support effective, inclusive managed charging programs alongside industry leaders as the market evolves. VGIC offers the following responses to inform Staff's ongoing evaluation.

Question 1: What role could the Commission or NY utilities play in developing an EV telematics accuracy standard?

VGIC Response:

VGIC believes the most effective role for the Commission at this stage is directing (a) DPS Staff to engage directly with staff at other utility commissions wrestling with the same issues, namely, California, Massachusetts, and Maryland, and (b) the JU to actively engage via at least one utility representative at the national standards body or bodies developing telematics and/or EVSE accuracy and reporting requirements. The former approach has been facilitated on related EV issues through NARUC's EV Working Group, general knowledge sharing across staff-facilitated workshops, and direct staff-to-staff engagement and inquiry. Meanwhile, the latter approach has been proven successful in the development of standards for AC bidirectional charging (i.e., V2G AC), where the California Public Utilities Commission directed the state's investor-owned utilities to contribute to the development of the UL 1741 SC standard. By issuing these directives, The Commission can clearly signal that New York intends to adopt nationally recognized accuracy standards once they are finalized. This approach offers clarity and predictability for industry participants while ensuring New York's eventual requirements remain fully aligned with broader interoperability efforts.

Notably, standards development is most commonly a volunteer-based activity, and the appropriate technical expertise, especially from a utility representative, would be welcomed and highly valued in the creation of a new consensus-based standard or updated version of an existing standard. DPS Staff and JU input can help ensure that national standards adequately reflect real-world operational needs without requiring New York to independently define accuracy criteria.

Additionally, as detailed above in Section II, VGIC recommends that the Commission direct DPS Staff to formalize these activities and intents in a forward-looking roadmap that outlines how New York will transition to national EVSE and telematics accuracy standards once EV-specific rates are available and, in the case of telematics, once the standards are sufficiently mature. This roadmap should describe the technical criteria, testing methodologies, data-handling expectations, and implementation steps that Staff will evaluate as national standards evolve. It should also identify the analytical work, pilots, and stakeholder engagement processes needed to ensure that future accuracy requirements are adopted smoothly, without disrupting or narrowing participation in current managed charging programs. By tasking Staff with producing and executing this roadmap, the Commission can provide structure and transparency while avoiding premature rulemaking.

Question 2: What role could the Commission play in widespread adoption of accuracy standards?

VGIC Response:

As detailed above, providing clear direction regarding the intent to have stricter accuracy standards if New York offers EV-specific rates signals the critical underlying imperative to solicit volunteers to develop relevant standards. As those standards become finalized and commercially supported, the Commission can then incorporate them into requirements in a way that is predictable, transparent, and aligned with New York's broader electrification goals. This approach provides clarity and direction to manufacturers, charging providers, and aggregators, ensuring that they understand how today's standards development investments will translate into future implementation within New York's EV rate landscape and, in turn, are compelled to make those resource investments in standards development work.

Question 3: What actions could utilities take to reduce data opacity?

VGIC Response:

Reducing data opacity is essential to building trust in managed and bidirectional charging programs and ensuring that all parties, utilities, customers, aggregators, and regulators have a clear understanding of how charging data is collected, processed, and used. Utilities should provide customers and aggregators with reasonable access to their underlying charging data, increasing transparency and supporting any disputes of program incentives. This would meaningfully enhance transparency and complement the long-term development of accuracy standards.

Question 4: What actions could improve accuracy of devices or services used in managed charging?

VGIC Response:

Improving accuracy starts with stronger coordination between managed charging program administrators, service providers, and vehicle OEMs. Clear data-sharing practices, including clarity on how charging data is acquired and collected, consistent reporting formats, and collaborative troubleshooting can quickly enhance data quality without limiting customer participation. Based on conversations with VGIC members, several industry participants are aiming to advance the exclusive use of OEM-authorized telematics data access for use in managed charging programs. VGIC recommends the Commission prepare to address this issue as managed charging use cases mature (for example, to unlock additional distribution system optimization benefits) and participation scale increases (for example, to a degree where integration reliability is more critical to utility operations and planning).

Question 5: Are there other program designs that mitigate inaccurate readings while engaging all driver types?

VGIC Response:

VGIC does not recommend creating new or more complex program structures at this time, as doing so could reduce clarity and limit participation. Instead, utilities can implement internal safeguards within existing program designs to help mitigate the effects of measurement uncertainty. Maintaining broad enrollment is critical for program cost-effectiveness, and these internal guardrails strike the right balance between operational integrity and accessibility.

Question 6: Should accuracy be addressed differently in active vs. passive managed charging programs?

VGIC Response:

Accuracy requirements should be calibrated to the specific goals of active and passive managed charging programs rather than treated as a uniform threshold. Active managed charging, where utilities or aggregators directly control or shift load, depends on timely, reliable data to inform dispatch decisions, but it does *not* require revenue-grade metering; the necessary level of accuracy is tied to operational performance, not billing. Passive managed charging, which relies on incentives to influence off-peak behavior, can tolerate greater measurement variability because program outcomes are not sensitive to fine-grained kWh accuracy. In both cases, the appropriate accuracy standard flows from the program's *purpose*: revenue-grade metering (e.g., NIST Handbook 44) should only be required when the goal is EV-specific billing or TOU rate design, not for managed charging program incentives. New York should therefore maintain broad participation pathways for both active and passive programs while aligning future accuracy requirements with the specific functions each program is designed to serve.

IV. Conclusion

VGIC urges DPS to maintain the broad participation pathways by adopting Option 5 (Status Quo), avoid premature accuracy requirements, and base all future metering and submetering policies on emerging national standards rather than New York-specific rules. As DPS develops a

roadmap, accuracy expectations should be matched to program goals: current EVSE and telematics capabilities are sufficient for managed charging, while future EV-specific TOU rates will require nationally aligned, revenue-grade metering standards such as NIST Handbook 44 (for EVSE) or subsequent telematics standards. The Commission and utilities should actively participate in regional or national standards development.

VGIC appreciates the opportunity to provide these comments and looks forward to continued collaboration to position New York as a leader in vehicle-grid integration.

Respectfully submitted,

/s/ Steve Letendre

Steve Letendre, PhD

Senior Advisor

Vehicle-Grid Integration Council

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